

5— Rethinking the Public Sphere: A Contribution to the Critique of Actually Existing Democracy

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1— Introduction

Today in the United States we hear a great deal of ballyhoo about "the triumph of liberal democracy" and even "the end of history." Yet there is still quite a lot to object to in our own actually existing democracy, and the project of a critical theory of the limits of democracy in late-capitalist societies remains as relevant as ever. In fact, this project seems to me to have acquired a new urgency at a time when "liberal democracy" is being touted as the *ne plus ultra* of social systems for countries that are emerging from Soviet-style state socialism, Latin American military dictatorships, and southern African regimes of racial domination.

Those of us who remain committed to theorizing the limits of democracy in late-capitalist societies will find in the work of Jürgen Habermas an indispensable resource. I mean the concept of "the public sphere," originally elaborated in his 1962 book, *The Structural Transformation of the Public Sphere*, and subsequently resituated but never abandoned in his later work.¹

The political and theoretical importance of this idea is easy to explain. Habermas's concept of the public sphere provides a way of circumventing some confusions that have plagued progressive social movements and the political theories associated with them. Take, for example, the longstanding failure in the dominant wing of the socialist and Marxist tradition to appreciate the full force of the distinction between the appa-

ratures of the state, on the one hand, and public arenas of citizen discourse and association, on the other. All too often it was assumed in this tradition that to subject the economy to the control of the socialist state was to subject it to the control of the socialist citizenry. Of course, that was not so. But the conflation of the state apparatus with the public sphere of discourse and association provided ballast to processes whereby the socialist vision became institutionalized in an authoritarian statist form instead of in a participatory-democratic form. The result has been to jeopardize the very idea of socialist democracy.

A second problem, albeit one that has so far been much less historically momentous and certainly less tragic, is a confusion one encounters at times in contemporary feminisms. I mean a confusion that involves the use of the very same expression "the public sphere" but in a sense that is less precise and less useful than Habermas's. This expression has been used by many feminists to refer to everything that is outside the domestic or familial sphere. Thus "the public sphere" on this usage conflates at least three analytically distinct things: the state, the official economy of paid employment, and arenas of public discourse.² Now it should not be thought that the conflation of these three things is a merely theoretical issue. On the contrary, it has practical political consequences when, for example, agitational campaigns against misogynist cultural representations are confounded with programs for state censorship or when struggles to deprivatize housework and child care are equated with their commodification. In both these cases the result is to occlude the question of whether to subject gender issues to the logic of the market or of the administrative state is to promote the liberation of women.

The idea of "the public sphere" in Habermas's sense is a conceptual resource that can help overcome such problems. It designates a theater in modern societies in which political participation is enacted through the medium of talk. It is the space in which citizens deliberate about their common affairs, and hence an institutionalized arena of discursive interaction. This arena is conceptually distinct from the state; it is a site for the production and circulation of discourses that can in principle

be critical of the state. The public sphere in Habermas's sense is also conceptually distinct from the official economy; it is not an arena of market relations but rather one of discursive relations, a theater for debating and deliberating rather than for buying and selling. Thus this concept of the public sphere permits us to keep in view the distinctions among state apparatuses, economic markets, and democratic associations, distinctions that are essential to democratic theory.

For these reasons I am going to take as a basic premise for this essay that something like Habermas's idea of the public sphere is indispensable to critical social theory and democratic political practice. I assume that no attempt to understand the limits of actually existing late-capitalist democracy can succeed without in some way or another making use of it. I assume that the same goes for urgently needed constructive efforts to project alternative models of democracy.

If you will grant me that the general idea of the public sphere is indispensable to critical theory, then I shall go on to argue that the specific form in which Habermas has elaborated this idea is not wholly satisfactory. On the contrary, I contend that his analysis of the public sphere needs to undergo some critical interrogation and reconstruction if it is to yield a category capable of theorizing the limits of actually existing democracy.

Let me remind you that the subtitle of *Structural Transformation* is "An Inquiry into a Category of Bourgeois Society." The object of the inquiry is the rise and decline of a historically specific and limited form of the public sphere, which Habermas calls the "liberal model of the bourgeois public sphere." The aim is to identify the conditions that made possible this type of public sphere and to chart their devolution. The upshot is an argument that under altered conditions of late-twentieth-century "welfare state mass democracy," the bourgeois or liberal model of the public sphere is no longer feasible. Some new form of public sphere is required to salvage that arena's critical function and to institutionalize democracy.

Oddly, Habermas stops short of developing a new, postbourgeois model of the public sphere. Moreover, he never explicitly problematizes some dubious assumptions that underlie the bourgeois model. As a result, we are left at the end of

Structural Transformation without a conception of the public sphere that is sufficiently distinct from the bourgeois conception to serve the needs of critical theory today.

That, at any rate, is the thesis I intend to argue. To make my case, I shall proceed as follows: I shall begin in section 2 by juxtaposing Habermas's account of the structural transformation of the public sphere with an alternative account that can be pieced together from some recent revisionist historiography. Then I shall identify four assumptions underlying the bourgeois conception of the public sphere, as Habermas describes it, that this newer historiography renders suspect. Next in the following four sections I shall examine each of these assumptions in turn. Finally, in a brief conclusion I shall draw together some strands from these critical discussions that point toward an alternative, postbourgeois conception of the public sphere.

2—

The Public Sphere: Alternative Histories, Competing Conceptions

Let me begin by sketching some highlights of Habermas's account of the structural transformation of the public sphere. According to Habermas, the idea of a public sphere is that of a body of "private persons" assembled to discuss matters of "public concern" or "common interest." This idea acquired force and reality in early modern Europe in the constitution of "bourgeois public spheres" as counterweights to absolutist states. These publics aimed to mediate between society and the state by holding the state accountable to society via publicity. At first this meant requiring that information about state functioning be made accessible so that state activities would be subject to critical scrutiny and the force of public opinion. Later it meant transmitting the considered "general interest" of "bourgeois society" to the state via forms of legally guaranteed free speech, free press, and free assembly, and eventually through the parliamentary institutions of representative government.

Thus at one level the idea of the public sphere designated an institutional mechanism for rationalizing political domination by rendering states accountable to (some of) the citizenry.

At another level, it designated a specific kind of discursive interaction. Here the public sphere connoted an ideal of unrestricted rational discussion of public matters. The discussion was to be open and accessible to all, merely private interests were to be inadmissible, inequalities of status were to be bracketed, and discussants were to deliberate as peers. The result of such discussion would be public opinion in the strong sense of a consensus about the common good.

According to Habermas, the full utopian potential of the bourgeois conception of the public sphere was never realized in practice. The claim to open access in particular was not made good. Moreover, the bourgeois conception of the public sphere was premised on a social order in which the state was sharply differentiated from the newly privatized market economy; it was this clear separation of society and state that was supposed to underpin a form of public discussion that excluded "private interests." But these conditions eventually eroded as nonbourgeois strata gained access to the public sphere. Then "the social question" came to the fore, society was polarized by class struggle, and the public fragmented into a mass of competing interest groups. Street demonstrations and back room, brokered compromises among private interests replaced reasoned public debate about the common good. Finally, with the emergence of welfare-state mass democracy, society and the state became mutually intertwined; publicity in the sense of critical scrutiny of the state gave way to public relations, mass-mediated staged displays and the manufacture and manipulation of public opinion.

Now let me juxtapose to this sketch of Habermas's account an alternative account that I shall piece together from some recent revisionist historiography. Briefly, scholars like Joan Landes, Mary Ryan, and Geoff Eley contend that Habermas's account idealizes the liberal public sphere. They argue that, despite the rhetoric of publicity and accessibility, the official public sphere rested on, indeed was importantly constituted by, a number of significant exclusions. For Landes, the key axis of exclusion is gender; she argues that the ethos of the new republican public sphere in France was constructed in deliberate opposition to that of a more woman-friendly salon culture.

that the republicans stigmatized as "artificial," "effeminate," and "aristocratic." Consequently, a new, austere style of public speech and behavior was promoted, a style deemed "rational," "virtuous," and "manly." In this way masculinist gender constructs were built into the very conception of the republican public sphere, as was a logic that led, at the height of Jacobin rule, to the formal exclusion of women from political life.³ Here the republicans drew on classical traditions that cast femininity and publicity as oxymorons; the depth of such traditions can be gauged in the etymological connection between "public" and "pubic," a graphic trace of the fact that in the ancient world possession of a penis was a requirement for speaking in public. (A similar link is preserved, incidentally, in the etymological connection between "testimony" and "testicle."⁴)

Extending Landes's argument, Geoff Eley contends that exclusionary operations were essential to liberal public spheres not only in France but also in England and Germany and that in all these countries gender exclusions were linked to other exclusions rooted in processes of class formation. In all these countries, he claims, the soil that nourished the liberal public sphere was "civil society," the emerging new congeries of voluntary associations that sprung up in what came to be known as "the age of societies." But this network of clubs and associations—philanthropic, civic, professional, and cultural—was anything but accessible to everyone. On the contrary, it was the arena, the training ground, and eventually the power base of a stratum of bourgeois men who were coming to see themselves as a "universal class" and preparing to assert their fitness to govern. Thus the elaboration of a distinctive culture of civil society and of an associated public sphere was implicated in the process of bourgeois class formation; its practices and ethos were markers of "distinction" in Pierre Bourdieu's sense, ways of defining an emergent elite, of setting it off from the older aristocratic elites it was intent on displacing on the one hand and from the various popular and plebeian strata it aspired to rule on the other.⁵ Moreover, this process of distinction helps explain the exacerbation of sexism characteristic of the liberal public sphere; new gender norms enjoining feminine domesticity and a sharp separation of public and private spheres

functioned as key signifiers of bourgeois difference from both higher and lower social strata. It is a measure of the eventual success of this bourgeois project that these norms later became hegemonic, sometimes imposed on, sometimes embraced by, broader segments of society.⁶

There is a remarkable irony here, one that Habermas's account of the rise of the public sphere fails fully to appreciate.⁷ A discourse of publicity touting accessibility, rationality, and the suspension of status hierarchies is itself deployed as a strategy of distinction. Of course, in and of itself this irony does not fatally compromise the discourse of publicity; that discourse can be, indeed has been, differently deployed in different circumstances and contexts. Nevertheless, it does suggest that the relationship between publicity and status is more complex than Habermas intimates, that declaring a deliberative arena to be a space where extant status distinctions are bracketed and neutralized is not sufficient to make it so.

Moreover, the problem is not only that Habermas idealizes the liberal public sphere but also that he fails to examine other, nonliberal, nonbourgeois, competing public spheres. Or rather, it is precisely because he fails to examine these other public spheres that he ends up idealizing the liberal public sphere.⁸ Mary Ryan documents the variety of ways in which nineteenth-century North American women of various classes and ethnicities constructed access routes to public political life, even despite their exclusion from the official public sphere. In the case of elite bourgeois women, this involved building a counter civil society of alternative, woman-only, voluntary associations, including philanthropic and moral-reform societies. In some respects, these associations aped the all-male societies built by these women's fathers and grandfathers, yet in other respects the women were innovating, since they creatively used the heretofore quintessentially "private" idioms of domesticity and motherhood precisely as springboards. for public activity. Meanwhile, for some less privileged women, access to public life came through participation in supporting roles in male-dominated working-class protest activities. Still other women found public outlets in street protests and parades. Finally, women's-rights advocates publicly contested both women's ex-

clusion from the official public sphere and the privatization of gender politics.⁹

Ryan's study shows that even in the absence of formal political incorporation through suffrage, there were a variety of ways of accessing public life and a multiplicity of public arenas. Thus the view that women were excluded from the public sphere turns out to be ideological; it rests on a class-and gender-biased notion of publicity, one which accepts at face value the bourgeois public's claim to be *the* public. In fact, the historiography of Ryan and others demonstrates that the bourgeois public was never *the* public. On the contrary, virtually contemporaneous with the bourgeois public there arose a host of competing counterpublics, including nationalist publics, popular peasant publics, elite women's publics, and working-class publics. Thus there were competing publics from the start, not just in the late nineteenth and twentieth centuries, as Habermas implies.¹⁰

Moreover, not only were there always a plurality of competing publics, but the relations between bourgeois publics and other publics were always conflictual. Virtually from the beginning, counterpublics contested the exclusionary norms of the bourgeois public, elaborating alternative styles of political behavior and alternative norms of public speech. Bourgeois publics in turn excoriated these alternatives and deliberately sought to block broader participation. As Eley puts it, "the emergence of a bourgeois public was never defined solely by the struggle against absolutism and traditional authority, but . . . addressed the problem of popular containment as well. The public sphere was always constituted by conflict."¹¹

In general, this revisionist historiography suggests a much darker view of the bourgeois public sphere than the one that emerges from Habermas's study. The exclusions and conflicts that appeared as accidental trappings from his perspective become constitutive in the revisionists' view. The result is a gestalt switch that alters the very meaning of the public sphere. We can no longer assume that the bourgeois conception of the public sphere was simply an unrealized utopian ideal; it was also a masculinist ideological notion that functioned to legitimate an emergent form of class rule. Therefore, Eley draws a

Gramscian moral from the story: the official bourgeois public sphere is the institutional vehicle for a major historical transformation in the nature of political domination. This is the shift from a repressive mode of domination to a hegemonic one, from rule based primarily on acquiescence to superior force to rule based primarily on consent supplemented with some measure of repression.¹² The important point is that this new mode of political domination, like the older one, secures the ability of one stratum of society to rule the rest. The official public sphere, then, was, and indeed is, the prime institutional site for the construction of the consent that defines the new, hegemonic mode of domination.¹³

What conclusions should we draw from this conflict of historical interpretations? Should we conclude that the very concept of the public sphere is a piece of bourgeois, masculinist ideology so thoroughly compromised that it can shed no genuinely critical light on the limits of actually existing democracy? Or should we conclude rather that the public sphere was a good idea that unfortunately was not realized in practice but retains some emancipatory force? In short, is the idea of the public sphere an instrument of domination or a utopian ideal?

Well, perhaps both, but actually neither. I contend that both of those conclusions are too extreme and unsupple to do justice to the material I have been discussing.¹⁴ Instead of endorsing either one of them, I want to propose a more nuanced alternative. I shall argue that the revisionist historiography neither undermines nor vindicates *the* concept of the public sphere *simpliciter*, but that it calls into question four assumptions that are central to the *bourgeois, masculinist* conception of the public sphere, at least as Habermas describes it. These are as follows:

- The assumption that it is possible for interlocutors in a public sphere to bracket status differentials and to deliberate as *if* they were social equals; the assumption, therefore, that societal equality is not a necessary condition for political democracy
- The assumption that the proliferation of a multiplicity of competing publics is necessarily a step away from, rather than toward, greater democracy, and that a single, comprehensive public sphere is always preferable to a nexus of multiple publics

- The assumption that discourse in public spheres should be restricted to deliberation about the common good, and that the appearance of private interests and private issues is always undesirable
- The assumption that a functioning democratic public sphere requires a sharp separation between civil society and the state

Let me consider each of these in turn.

3—

Open Access, Participatory Parity, and Social Equality

Habermas's account of the bourgeois conception of the public sphere stresses its claim to be open and accessible to all. Indeed, this idea of open access is one of the central meanings of the norm of publicity. Of course, we know both from revisionist history and from Habermas's account that the bourgeois public's claim to full accessibility was not in fact realized. Women of all classes and ethnicities were excluded from official political participation on the basis of gender status, while plebeian men were formally excluded by property qualifications. Moreover, in many cases women and men of racialized ethnicities of all classes were excluded on racial grounds.

What are we to make of this historical fact of the nonrealization in practice of the bourgeois public sphere's ideal of open access? One approach is to conclude that the ideal itself remains unaffected, since it is possible in principle to overcome these exclusions. And in fact, it was only a matter of time before formal exclusions based on gender, property, and race were eliminated.

This is convincing enough as far as it goes, but it does not go far enough. The question of open access cannot be reduced without remainder to the presence or absence of formal exclusions. It requires us to look also at the process of discursive interaction within formally inclusive public arenas. Here we should recall that the bourgeois conception of the public sphere requires bracketing inequalities of status. This public sphere was to be an arena in which interlocutors would set aside such characteristics as differences in birth and fortune and speak to one another as if they were social and economic peers. The

operative phrase here is "as if." In fact, the social inequalities among the interlocutors were not eliminated but only bracketed.

But were they really effectively bracketed? The revisionist historiography suggests they were not. Rather, discursive interaction within the bourgeois public sphere was governed by protocols of style and decorum that were themselves correlates and markers of status inequality. These functioned informally to marginalize women and members of the plebeian classes and to prevent them from participating as peers.

Here we are talking about informal impediments to participatory parity that can persist even after everyone is formally and legally licensed to participate. That these constitute a more serious challenge to the bourgeois conception of the public sphere can be seen from a familiar contemporary example. Feminist research has documented a syndrome that many of us have observed in faculty meetings and other mixed-sex deliberative bodies: men tend to interrupt women more than women interrupt men; men also tend to speak more than women, taking more turns and longer turns; and women's interventions are more often ignored or not responded to than men's. In response to the sorts of experiences documented in this research, an important strand of feminist political theory has claimed that deliberation can serve as a mask for domination. Theorists like Jane Mansbridge have argued that "the transformation of 'I' into 'we' brought about through political deliberation can easily mask subtle forms of control. Even the language people use as they reason together usually favors one way of seeing things and discourages others. Subordinate groups sometimes cannot find the right voice or words to express their thoughts, and when they do, they discover they are not heard. [They] are silenced, encouraged to keep their wants inchoate, and heard to say 'yes' when what they have said is 'no.'" ¹⁵ Mansbridge rightly notes that many of these feminist insights into ways in which deliberation can serve as a mask for domination extend beyond gender to other kinds of unequal relations, like those based on class or ethnicity. They alert us to the ways in which social inequalities can infect deliberation, even in the absence of any formal exclusions.

Here I think we encounter a very serious difficulty with the bourgeois conception of the public sphere. Insofar as the bracketing of social inequalities in deliberation means proceeding as if they don't exist when they do, this does not foster participatory parity. On the contrary, such bracketing usually works to the advantage of dominant groups in society and to the disadvantage of subordinates. In most cases it would be more appropriate to *unbracket* inequalities in the sense of explicitly thematizing them—a point that accords with the spirit of Habermas's later communicative ethics.

The misplaced faith in the efficacy of bracketing suggests another flaw in the bourgeois conception. This conception assumes that a public sphere is or can be a space of zero degree culture, so utterly bereft of any specific ethos as to accommodate with perfect neutrality and equal ease interventions expressive of any and every cultural ethos. But this assumption is counterfactual, and not for reasons that are merely accidental. In stratified societies, unequally empowered social groups tend to develop unequally valued cultural styles. The result is the development of powerful informal pressures that marginalize the contributions of members of subordinated groups both in everyday contexts and in official public spheres.¹⁶ Moreover, these pressures are amplified, rather than mitigated, by the peculiar political economy of the bourgeois public sphere. In this public sphere the media that constitute the material support for the circulation of views are privately owned and operated for profit. Consequently, subordinated social groups usually lack equal access to the material means of equal participation.¹⁷ Thus political economy enforces structurally what culture accomplishes informally.

If we take these considerations seriously, then we should be led to entertain serious doubts about a conception of the public sphere that purports to bracket, rather than to eliminate, structural social inequalities. We should question whether it is possible even in principle for interlocutors to deliberate *as if* they were social peers in specially designated discursive arenas when these discursive arenas are situated in a larger societal context that is pervaded by structural relations of dominance and subordination.

What is at stake here is the autonomy of specifically political institutions vis-à-vis the surrounding societal context. Now one salient feature that distinguishes liberalism from some other political-theoretical orientations is that liberalism assumes the autonomy of the political in a very strong form. Liberal political theory assumes that it is possible to organize a democratic form of political life on the basis of socioeconomic and sociosexual structures that generate systemic inequalities. For liberals, then, the problem of democracy becomes the problem of how to insulate political processes from what are considered to be nonpolitical or prepolitical processes, those characteristic, for example, of the economy, the family, and informal everyday life. The problem for liberals is thus how to strengthen the barriers separating political institutions that are supposed to instantiate relations of equality from economic, cultural, and sociosexual institutions that are premised on systemic relations of inequality.¹⁸ Yet the weight of circumstance suggests that to have a public sphere in which interlocutors can deliberate as peers, it is not sufficient merely to bracket social inequality. Instead, a necessary condition for participatory parity is that systemic social inequalities be eliminated. This does not mean that everyone must have exactly the same income, but it does require the sort of rough equality that is inconsistent with systemically generated relations of dominance and subordination. *Pace* liberalism, then, political democracy requires substantive social equality.¹⁹

I have been arguing that the bourgeois conception of the public sphere is inadequate insofar as it supposes that social equality is not a necessary condition for participatory parity in public spheres. What follows from this for the critique of actually existing democracy? One task for critical theory is to render visible the ways in which societal inequality infects formally inclusive existing public spheres and taints discursive interaction within them.

4—

Equality, Diversity, and Multiple Publics

So far I have been discussing what we might call "intrapublic relations," that is, the character and quality of discursive inter-

actions within a given public sphere. Now I want to consider what we might call "interpublic relations," that is, the character of interactions among different publics.

Let me begin by recalling that Habermas's account stresses the singularity of the bourgeois conception of the public sphere, its claim to be *the* public arena, in the singular. In addition, his narrative tends in this respect to be faithful to that conception, since it casts the emergence of additional publics as a late development signaling fragmentation and decline. This narrative, then, like the bourgeois conception itself, is informed by an underlying evaluative assumption, namely, that the institutional confinement of public life to a single, overarching public sphere is a positive and desirable state of affairs, whereas the proliferation of a multiplicity of publics represents a departure from, rather than an advance toward, democracy. It is this normative assumption that I now want to scrutinize. In this section I shall assess the relative merits of a single, comprehensive public versus multiple publics in two kinds of modern societies: stratified societies and egalitarian multicultural societies.²⁰

First, let me consider the case of stratified societies, by which I mean societies whose basic institutional framework generates unequal social groups in structural relations of dominance and subordination. I have already argued that in such societies, full parity of participation in public debate and deliberation is not within the reach of possibility. The question to be addressed here then is, What form of public life comes closest to approaching that ideal? What institutional arrangements will best help narrow the gap in participatory parity between dominant and subordinate groups?

I contend that in stratified societies, arrangements that accommodate contestation among a plurality of competing publics better promote the ideal of participatory parity than does a single, comprehensive, overarching public. This follows from the argument of the previous section. There I argued that it is not possible to insulate special discursive arenas from the effects of societal inequality and that where societal inequality persists, deliberative processes in public spheres will tend to operate to the advantage of dominant groups and to the dis-

advantage of subordinates. Now I want to add that these effects will be exacerbated where there is only a single, comprehensive public sphere. In that case, members of subordinated groups would have no arenas for deliberation among themselves about their needs, objectives, and strategies. They would have no venues in which to undertake communicative processes that were not, as it were, under the supervision of dominant groups. In this situation they would be less likely than otherwise to "find the right voice or words to express their thoughts" and more likely than otherwise "to keep their wants inchoate." This would render them less able than otherwise to articulate and defend their interests in the comprehensive public sphere. They would be less able than otherwise to expose modes of deliberation that mask domination by, in Mansbridge's words, "absorbing the less powerful into a false 'we' that reflects the more powerful."

This argument gains additional support from revisionist historiography of the public sphere, up to and including that of very recent developments. This historiography records that members of subordinated social groups—women, workers, peoples of color, and gays and lesbians—have repeatedly found it advantageous to constitute alternative publics. I propose to call these *subaltern counterpublics* in order to signal that they are parallel discursive arenas where members of subordinated social groups invent and circulate counterdiscourses to formulate oppositional interpretations of their identities, interests, and needs.²¹ Perhaps the most striking example is the late-twentieth-century U.S. feminist subaltern counterpublic, with its variegated array of journals, bookstores, publishing companies, film and video distribution networks, lecture series, research centers, academic programs, conferences, conventions, festivals, and local meeting places. In this public sphere, feminist women have invented new terms for describing social reality, including "sexism," "the double shift," "sexual harassment," and "marital, date, and acquaintance rape." Armed with such language, we have recast our needs and identities, thereby reducing, although not eliminating, the extent of our disadvantage in official public spheres.²²

Let me not be misunderstood. I do not mean to suggest that subaltern counterpublics are always necessarily virtuous. Some of them, alas, are explicitly antidemocratic and antiegalitarian, and even those with democratic and egalitarian intentions are not always above practicing their own modes of informal exclusion and marginalization. Still, insofar as these counterpublics emerge in response to exclusions within dominant publics, they help expand discursive space. In principle, assumptions that were previously exempt from contestation will now have to be publicly argued out. In general, the proliferation of subaltern counterpublics means a widening of discursive contestation, and that is a good thing in stratified societies.

I am emphasizing the contestatory function of subaltern counterpublics in stratified societies in part to complicate the issue of separatism. In my view, the concept of a counterpublic militates in the long run against separatism because it assumes a *publicist* orientation. Insofar as these arenas are *publics*, they are by definition not enclaves, which is not to deny that they are often involuntarily enclaved. After all, to interact discursively as a member of public, subaltern or otherwise, is to aspire to disseminate one's discourse to ever widening arenas. Habermas captures well this aspect of the meaning of publicity when he notes that, however limited a public may be in its empirical manifestation at any given time, its members understand themselves as part of a potentially wider public, that indeterminate, empirically counterfactual body we call "the public at large." The point is that in stratified societies, subaltern counterpublics have a dual character. On the one hand, they function as spaces of withdrawal and regroupment; on the other hand, they also function as bases and training grounds for agitational activities directed toward wider publics. It is precisely in the dialectic between these two functions that their emancipatory potential resides. This dialectic enables subaltern counterpublics partially to offset, although not wholly to eradicate, the unjust participatory privileges enjoyed by members of dominant social groups in stratified societies.

So far I have been arguing that, although in stratified societies the ideal of participatory parity is not fully realizable, it is more closely approximated by arrangements that permit

contestation among a plurality of competing publics than by a single, comprehensive public sphere. Of course, contestation among competing publics supposes interpublic discursive interaction. How, then, should we understand such interaction? Geoff Eley suggests that we think of the public sphere (in stratified societies) as "the structured setting where cultural and ideological contest or negotiation among a variety of publics takes place."²³ This formulation does justice to the multiplicity of public arenas in stratified societies by expressly acknowledging the presence and activity of "a variety of publics." At the same time, it also does justice to the fact that these various publics are situated in a single "structured setting" that advantages some and disadvantages others. Finally, Eley's formulation does justice to the fact that in stratified societies the discursive relations among differentially empowered publics are as likely to take the form of contestation as that of deliberation.

Let me now consider the relative merits of multiple publics versus a single public for egalitarian, multicultural societies. By "egalitarian societies" I mean nonstratified societies, societies whose basic framework does not generate unequal social groups in structural relations of dominance and subordination. Egalitarian societies, therefore, are societies without classes and without gender or racial divisions of labor. However, they need not be culturally homogeneous. On the contrary, provided such societies permit free expression and association, they are likely to be inhabited by social groups with diverse values, identities, and cultural styles, and hence to be multicultural. My question is, Under conditions of cultural diversity in the absence of structural inequality, would a single, comprehensive public sphere be preferable to multiple publics?

To answer this question, we need to take a closer look at the relationship between public discourse and social identities. *Pace* the bourgeois conception, public spheres are not only arenas for the formation of discursive opinion; in addition, they are arenas for the formation and enactment of social identities.²⁴ This means that participation is not simply a matter of being able to state propositional contents that are neutral with respect to form of expression. Rather, as I argued in the previous

section, participation means being able to speak in one's own voice, and thereby simultaneously to construct and express one's cultural identity through idiom and style. ²⁵ Moreover, as I also suggested, public spheres themselves are not spaces of zero-degree culture, equally hospitable to any possible form of cultural expression. Rather, they consist in culturally specific institutions, including, for example, various journals and various social geographies of urban space. These institutions may be understood as culturally specific rhetorical lenses that filter and alter the utterances they frame; they can accommodate some expressive modes and not others.²⁶

It follows that public life in egalitarian, multicultural societies cannot consist exclusively in a single, comprehensive public sphere. That would be tantamount to filtering diverse rhetorical and stylistic norms through a single, overarching lens. Moreover, since there can be no such lens that is genuinely culturally neutral, it would effectively privilege the expressive norms of one cultural group over others and thereby make discursive assimilation a condition for participation in public debate. The result would be the demise of multiculturalism (and the likely demise of social equality). In general, then, we can conclude that the idea of an egalitarian, multicultural society only makes sense if we suppose a plurality of public arenas in which groups with diverse values and rhetorics participate. By definition, such a society must contain a multiplicity of publics.

However, this need not preclude the possibility of an additional, more comprehensive arena in which members of different, more limited publics talk across lines of cultural diversity. On the contrary, our hypothetical egalitarian, multicultural society would surely have to entertain debates over policies and issues affecting everyone. The question is, Would participants in such debates share enough in the way of values, expressive norms, and therefore protocols of persuasion to lend their talk the quality of deliberations aimed at reaching agreement through giving reasons?

In my view, this is better treated as an empirical question than as a conceptual question. I see no reason to rule out in principle the possibility of a society in which social equality and

cultural diversity coexist with participatory democracy. I certainly hope there can be such a society. That hope gains some plausibility if we consider that, however difficult it may be, communication across lines of cultural difference is not in principle impossible, although it will certainly become impossible if one imagines that it requires bracketing of differences. Granted, such communication requires multicultural literacy, but that, I believe, can be acquired through practice. In fact, the possibilities expand once we acknowledge the complexity of cultural identities. *Pace* reductive, essentialist conceptions, cultural identities are woven of many different strands, and some of these strands may be common to people whose identities otherwise diverge, even when it is the divergences that are most salient.²⁷ Likewise, under conditions of social equality, the porousness, outer-directedness, and open-endedness of publics could promote intercultural communication. After all, the concept of a public presupposes a plurality of perspectives among those who participate within it, thereby allowing for internal differences and antagonisms and discouraging reified blocs.²⁸ In addition, the unbounded character and publicist orientation of publics allows people to participate in more than one public, and it allows memberships of different publics partially to overlap. This in turn makes intercultural communication conceivable in principle. All told, then, there do not seem to be any conceptual (as opposed to empirical) barriers to the possibility of a socially egalitarian, multicultural society that is also a participatory democracy. But this will necessarily be a society with many different publics, including at least one public in which participants can deliberate as peers across lines of difference about policy that concerns them all.

In general, I have been arguing that the ideal of participatory parity is better achieved by a multiplicity of publics than by a single public. This is true both for stratified societies and for egalitarian, multicultural societies, albeit for different reasons. In neither case is my argument intended as a simple postmodern celebration of multiplicity. Rather, in the case of stratified societies, I am defending subaltern counterpublics formed under conditions of dominance and subordination. In the other case, by contrast, I am defending the possibility of

combining social equality, cultural diversity, and participatory democracy.

What are the implications of this discussion for a critical theory of the public sphere in actually existing democracy? Briefly, we need a critical political sociology of a form of public life in which multiple but unequal publics participate. This means theorizing about the contestatory interaction of different publics and identifying the mechanisms that render some of them subordinate to others.

5—

Public Spheres, Common Concerns, and Private Interests

I have argued that in stratified societies, like it or not, subaltern counterpublics stand in a contestatory relationship to dominant publics. One important object of such interpublic contestation is the appropriate boundaries of the public sphere. Here the central questions are, What counts as a public matter? What, in contrast, is private? This brings me to a third set of problematic assumptions underlying the bourgeois conception of the public sphere, namely, assumptions concerning the appropriate scope of publicity in relation to privacy.

Let me remind you that it is central to Habermas's account that the bourgeois public sphere was to be a discursive arena in which "private persons" deliberated about "public matters." There are several different senses of "private" and "public" in play here. "Public," for example, can mean (1) state-related, (2) accessible to everyone, (3) of concern to everyone, and (4) pertaining to a common good or shared interest. Each of these corresponds to a contrasting sense of "private." In addition, there are two other senses of "private" hovering just below the surface here: (5) pertaining to private property in a market economy and (6) pertaining to intimate domestic or personal life, including sexual life.

I have already talked at length about the sense of "public" as open or accessible to all. Now I want to examine some of the other senses, beginning with (3), of concern to everyone.²⁹ This is ambiguous between what objectively affects or has an impact on everyone as seen from an outsider's perspective, and

what is recognized as a matter of common concern by participants. The idea of a public sphere as an arena of collective self-determination does not sit well with approaches that would appeal to an outsider's perspective to delimit its proper boundaries. Thus it is the second, participant's perspective that is relevant here. Only participants themselves can decide what is and what is not of common concern to them. However, there is no guarantee that all of them will agree. For example, until quite recently, feminists were in the minority in thinking that domestic violence against women was a matter of common concern and thus a legitimate topic of public discourse. The great majority of people considered this issue to be a private matter between what was assumed to be a fairly small number of heterosexual couples (and perhaps the social and legal professionals who were supposed to deal with them). Then feminists formed a subaltern counterpublic from which we disseminated a view of domestic violence as a widespread systemic feature of male-dominated societies. Eventually, after sustained discursive contestation, we succeeded in *making* it a common concern.

The point is that there are no naturally given, a priori boundaries here. What will count as a matter of common concern will be decided precisely through discursive contestation. It follows that no topics should be ruled off limits in advance of such contestation. On the contrary, democratic publicity requires positive guarantees of opportunities for minorities to convince others that what in the past was not public in the sense of being a matter of common concern should now become so. ³⁰

What, then, of the sense of "publicity" as pertaining to a common good or shared interest? This is the sense that is in play when Habermas characterizes the bourgeois public sphere as an arena in which the topic of discussion is restricted to the "common good" and in which discussion of "private interests" is ruled out. This is a view of the public sphere that we would today call civic-republican, as opposed to liberal-individualist. Briefly, the civic-republican model stresses a view of politics as people reasoning together to promote a common good that transcends the mere sum of individual preferences. The idea

is that through deliberation the members of the public can come to discover or create such a common good. In the process of their deliberations, participants are transformed from a collection of self-seeking, private individuals into a public-spirited collectivity, capable of acting together in the common interest. On this view, private interests have no proper place in the political public sphere. At best, they are the prepolitical starting point of deliberation, to be transformed and transcended in the course of debate.³¹

This civic-republican view of the public sphere is in one respect an improvement over the liberal-individualist alternative. Unlike the latter, it does not assume that people's preferences, interests, and identities are given exogenously in advance of public discourse and deliberation. It appreciates, rather, that preferences, interests, and identities are as much outcomes as antecedents of public deliberation; indeed, they are discursively constituted in and through it. However, the civic-republican view contains a very serious confusion, one that blunts its critical edge. This view conflates the ideas of deliberation and the common good by assuming that deliberation must be deliberation *about* the common good. Consequently, it limits deliberation to talk framed from the standpoint of a single, all-encompassing "we," thereby ruling claims of self-interest and group interest out of order. Yet, as Jane Mansbridge has argued, this works against one of the principal aims of deliberation, namely, to help participants clarify their interests, even when those interests turn out to conflict. "Ruling self-interest [and group interest] out of order makes it harder for any participant to sort out what is going on. In particular, the less powerful may not find ways to discover that the prevailing sense of "we" does not adequately include them."³²

In general, there is no way to know in advance whether the outcome of a deliberative process will be the discovery of a common good in which conflicts of interest evaporate as merely apparent or the discovery that conflicts of interest are real and the common good is chimerical. But if the existence of a common good cannot be presumed in advance, then there is no

warrant for putting any strictures on what sorts of topics, interests, and views are admissible in deliberation. ³³

This argument holds even in the best-case scenario of societies whose basic institutional frameworks do not generate systemic inequalities; even in such relatively egalitarian societies, we cannot assume in advance that there will be no real conflicts of interest. How much more pertinent, then, the argument is to stratified societies, which are traversed with pervasive relations of inequality. After all, when social arrangements operate to the systemic profit of some groups of people and to the systemic detriment of others, there are *prima facie* reasons for thinking that the postulation of a common good shared by exploiters and exploited may well be a mystification. Moreover, any consensus that purports to represent the common good in this social context should be regarded with suspicion, since this consensus will have been reached through deliberative processes tainted by the effects of dominance and subordination.

In general, critical theory needs to take a harder, more critical look at the terms "private" and "public." These terms, after all, are not simply straightforward designations of societal spheres; they are cultural classifications and rhetorical labels. In political discourse they are powerful terms frequently deployed to delegitimize some interests, views, and topics and to valorize others.

This brings me to two other senses of "private," which often function ideologically to delimit the boundaries of the public sphere in ways that disadvantage subordinate social groups. These are sense (5), pertaining to private property in a market economy, and sense (6), pertaining to intimate domestic or personal life, including sexual life. Each of these senses is at the center of a rhetoric of privacy that has historically been used to restrict the universe of legitimate public contestation.

The rhetoric of domestic privacy would exclude some issues and interests from public debate by personalizing and/or familializing them; it casts these as private, domestic or personal, familial matters in contradistinction to public, political matters. The rhetoric of economic privacy, in contrast, would exclude some issues and interests from public debate by economizing them; the issues in question here are cast as impersonal market

imperatives or as "private" ownership prerogatives or as technical problems for managers and planners, all in contradistinction to public, political matters. In both cases, the result is to enclave certain matters in specialized discursive arenas and thereby to shield them from broadly based debate and contestation. This usually works to the advantage of dominant groups and individuals and to the disadvantage of their subordinates.³⁴ If wife battering, for example, is labeled a "personal" or "domestic" matter and if public discourse about it is channeled into specialized institutions associated with, say, family law, social work, and the sociology and psychology of "deviance," then this serves to reproduce gender dominance and subordination. Similarly, if questions of workplace democracy are labeled "economic" or "managerial" problems and if discourse about these questions is shunted into specialized institutions associated with, say, "industrial relations" sociology, labor law, and "management science," then this serves to perpetuate class (and usually also gender and race) dominance and subordination.

This shows once again that the lifting of formal restrictions on public-sphere participation does not suffice to ensure inclusion in practice. On the contrary, even after women and workers have been formally licensed to participate, their participation may be hedged by conceptions of economic privacy and domestic privacy that delimit the scope of debate. These notions, therefore, are vehicles through which gender and class disadvantages may continue to operate subtextually and informally, even after explicit, formal restrictions have been rescinded.

6—

Strong Publics, Weak Publics: On Civil Society and the State

Let me turn now to my fourth and last assumption underlying the bourgeois conception of the public sphere, namely, the assumption that a functioning democratic public sphere requires a sharp separation of civil society and the state. This assumption is susceptible to two different interpretations, according to how one understands the expression "civil society."

If one takes that expression to mean a privately ordered, capitalist economy, then to insist on its separation from the state is to defend classical liberalism. The claim would be that a system of limited government and laissez-faire capitalism is a necessary precondition for a well-functioning public sphere.

We can dispose of this (relatively uninteresting) claim fairly quickly by drawing on some arguments of the previous sections. I have already shown that participatory parity is essential to a democratic public sphere and that rough socioeconomic equality is a precondition of participatory parity. Now I need only add that laissez-faire capitalism does not foster socioeconomic equality and that some form of politically regulated economic reorganization and redistribution is needed to achieve that end. Likewise, I have also shown that efforts to "privatize" economic issues and to cast them as off-limits with respect to state activity impede, rather than promote, the sort of full and free discussion built into the idea of a public sphere. It follows from these considerations that a sharp separation of (economic) civil society and the state is not a necessary condition for a well-functioning public sphere. On the contrary and *pace* the bourgeois conception, it is precisely some sort of interimbrication of these institutions that is needed. ³⁵

However, there is also a second, more interesting interpretation of the bourgeois assumption that a sharp separation of civil society and the state is necessary to a working public sphere, one that warrants more extended examination. In this interpretation, "civil society" means the nexus of nongovernmental or "secondary" associations that are neither economic nor administrative. We can best appreciate the force of the claim that civil society in this sense should be separate from the state if we recall Habermas's definition of the liberal public sphere as a "body of private persons assembled to form a public." The emphasis here on "private persons" signals (among other things) that the members of the bourgeois public are not state officials and that their participation in the public sphere is not undertaken in any official capacity. Accordingly, their discourse does not eventuate in binding, sovereign decisions authorizing the use of state power; on the contrary, it eventuates in "public opinion," critical commentary on autho-

rized decision-making that transpires elsewhere. The public sphere, in short, is not the state; it is rather the informally mobilized body of nongovernmental discursive opinion that can serve as a counterweight to the state. Indeed, in the bourgeois conception, it is precisely this extragovernmental character of the public sphere that confers an aura of independence, autonomy, and legitimacy on the "public opinion" generated in it.

Thus the bourgeois conception of the public sphere supposes the desirability of a sharp separation of (associational) civil society and the state. As a result, it promotes what I shall call *weak publics*, publics whose deliberative practice consists exclusively in opinion formation and does not also encompass decision making. Moreover, the bourgeois conception seems to imply that an expansion of such publics' discursive authority to encompass decision making as well as opinion making would threaten the autonomy of public opinion, for then the public would effectively become the state, and the possibility of a critical discursive check on the state would be lost.

That, at least, is suggested by Habermas's initial formulation of the bourgeois conception. In fact, the issue becomes more complicated as soon as we consider the emergence of parliamentary sovereignty. With that landmark development in the history of the public sphere, we encounter a major structural transformation, since a sovereign parliament functions as a public sphere *within* the state. Moreover, sovereign parliaments are what I shall call *strong publics*, publics whose discourse encompasses both opinion formation and decision making. As a locus of public deliberation culminating in legally binding decisions (or laws), parliament was to be the site for the discursive authorization of the use of state power. With the achievement of parliamentary sovereignty, therefore, the line separating (associational) civil society and the state is blurred.

Clearly, the emergence of parliamentary sovereignty and the consequent blurring of the separation between (associational) civil society and the state represents a democratic advance over earlier political arrangements. This is because, as the terms "strong public" and "weak public" suggest, the force of public opinion is strengthened when a body representing it is empow-

ered to translate such "opinion" into authoritative decisions. At the same time, there remain important questions about the relation between parliamentary strong publics and the weak publics to which they are supposed to be accountable. In general, these developments raise some interesting and important questions about the relative merits of weak and strong publics and about the respective roles that institutions of both kinds might play in a democratic and egalitarian society.

One set of questions concerns the possible proliferation of strong publics in the form of self-managing institutions. In self-managed workplaces, child-care centers, or residential communities, for example, internal institutional public spheres could be arenas both of opinion formation and decision making. This would be tantamount to constituting sites of direct or quasi-direct democracy, wherein all those engaged in a collective undertaking would participate in deliberations to determine its design and operation.³⁶ However, this would still leave open the relationship between such internal public spheres cum decision-making bodies and those external publics to which they might also be deemed accountable. The question of that relationship becomes important when we consider that people affected by an undertaking in which they do not directly participate as agents may nonetheless have a stake in its *modus operandi*; they therefore also have a legitimate claim to a say in its institutional design and operation.

Here we are again broaching the issue of accountability. What institutional arrangements best ensure the accountability of democratic decision-making bodies (strong publics) to *their* (external, weak, or, given the possibility of hybrid cases, weaker publics)?³⁷ Where in society are direct democracy arrangements called for, and where are representative forms more appropriate? How are the former best articulated with the latter? More generally, what democratic arrangements best institutionalize coordination among different institutions, including coordination among their various complicated publics? Should we think of central parliament as a strong superpublic with authoritative discursive sovereignty over basic societal ground rules and coordination arrangements? If so, does that require

the assumption of a single weak(er) external superpublic (in addition to, not instead of, various other smaller publics)? In any event, given the inescapable global interdependence manifest in the international division of labor within a single shared planetary biosphere, does it make sense to understand the nation-state as the appropriate unit of sovereignty?

I do not know the answers to most of these questions, and I am unable to explore them further in this essay. However, the possibility of posing them, even in the absence of full, persuasive answers, enables us to draw one salient conclusion: any conception of the public sphere that requires a sharp separation between (associational) civil society and the state will be unable to imagine the forms of self-management, interpublic coordination, and political accountability that are essential to a democratic and egalitarian society. The bourgeois conception of the public sphere, therefore, is not adequate for contemporary critical theory. What is needed, rather, is a postbourgeois conception that can permit us to envision a greater role for (at least some) public spheres than mere autonomous opinion formation removed from authoritative decision making. A postbourgeois conception would enable us to think about strong *and* weak publics, as well as about various hybrid forms. In addition, it would allow us to theorize the range of possible relations among such publics, which would expand our capacity to envision democratic possibilities beyond the limits of actually existing democracy.

7—

Conclusion: Rethinking the Public Sphere

Let me conclude by recapitulating what I believe I have accomplished in this essay. I have shown that the bourgeois conception of the public sphere as described by Habermas is not adequate for the critique of the limits of actually existing democracy in late-capitalist societies. At one level, my argument undermines the bourgeois conception as a normative ideal. I have shown first that an adequate conception of the public sphere requires not merely the bracketing, but rather the elimination, of social inequality. Second, I have shown that a mul-

tiplicity of publics is preferable to a single public sphere both in stratified societies and egalitarian societies. Third, I have shown that a tenable conception of the public sphere must countenance not the exclusion, but the inclusion, of interests and issues that bourgeois, masculinist ideology labels "private" and treats as inadmissible. Finally, I have shown that a defensible conception must allow both for strong publics and for weak publics and that it should help theorize the relations among them. In sum, I have argued against four constitutive assumptions of the bourgeois conception of the public sphere; at the same time, I have identified some corresponding elements of a new, postbourgeois conception.

At another level, my argument enjoins four corresponding tasks on the critical theory of actually existing democracy. First, this theory should render visible the ways in which social inequality taints deliberation within publics in late-capitalist societies. Second, it should show how inequality affects relations among publics in late-capitalist societies, how publics are differentially empowered or segmented, and how some are involuntarily enclaved and subordinated to others. Next, a critical theory should expose ways in which the labeling of some issues and interests as "private" limits the range of problems, and of approaches to problems, that can be widely contested in contemporary societies. Finally, the theory should show how the overly weak character of some public spheres in late-capitalist societies denudes "public opinion" of practical force.

In all these ways the theory should expose the limits of the specific form of democracy we enjoy in late-capitalist societies. Perhaps it can thereby help inspire us to try to push back those limits, while also cautioning people in other parts of the world against heeding the call to install them.

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Notes

1. Jürgen Habermas, *The Structural Transformation of the Public Sphere: An Inquiry into a Category of Bourgeois Society*, trans. Thomas Burger with Frederick Lawrence (Cambridge: MIT Press, 1989). For Habermas's later use of the category of the public sphere, see Jürgen Habermas, *The Theory of Communicative Action*, vol. 2, *Lifeworld and System: A Critique of Functionalist Reason*, trans. Thomas McCarthy (Boston: Beacon Press, 1987). For a critical secondary discussion of Habermas's later use of the concept, see Nancy Fraser, "What's Critical About Critical Theory? The Case of Habermas and Gender," in Fraser, *Unruly Practices: Power, Discourse, and Gender in Contemporary Social Theory* (University of Minnesota Press, 1989).
2. Throughout this paper I refer to paid workplaces, markets, credit systems, etc. as *official*-economic institutions so as to avoid the androcentric implication that domestic institutions are not also economic. For a discussion of this issue, see Nancy Fraser, "What's Critical about Critical Theory? The Case of Habermas and Gender."
3. Joan Landes, *Women and the Public Sphere in the Age of the French Revolution* (Ithaca: Cornell University Press, 1988).
4. For the "public"/"pubic" connection, see the *Oxford English Dictionary* (2nd ed., 1989), entry for "public." For the "testimony"/"testicle" connection, see Lucie White, "Subordination, Rhetorical Survival Skills, and Sunday Shoes: Notes on the Hearing of Mrs. G.," *Buffalo Law Review* 38, no. 1 (Winter 1990): 6.
5. Pierre Bourdieu, *Distinction: A Social Critique of the Judgment of Pure Taste* (Cambridge: Harvard University Press, 1979).
6. Geoff Eley, "Nations, Publics, and Political Cultures: Placing Habermas in the Nineteenth Century," in *Habermas and the Public Sphere*, ed. Craig Calhoun. See also Leonore Davidoff and Catherine Hall, *Family Fortunes: Men and Women of the English Middle Class, 1780–1850* (Chicago: University of Chicago Press, 1987).
7. Habermas does recognize that the issue of gender exclusion is connected to a shift from aristocratic to bourgeois public spheres, but, as I argue below, he fails to register its full implications.
8. I do not mean to suggest that Habermas is unaware of the existence of public spheres other than the bourgeois one; on the contrary, in the Preface to *Structural Transformation* (p. xviii) he explicitly states that his object is the liberal model of the bourgeois public sphere and that therefore he will discuss neither "the plebeian public sphere" (which he understands as an ephemeral phenomenon that existed "for just one moment" during the French Revolution) nor "the plebiscitary-acclamatory form of regimented public sphere characterizing dictatorships in highly developed industrial societies." My point is that, although Habermas acknowledges that there were alternative public spheres, he assumes that it is possible to understand the character of the bourgeois public by looking at it alone in isolation from its relations to other, competing publics. This assumption is problematic. In fact, as I shall demonstrate, an examination of the bourgeois public's relations to alternative publics challenges the bourgeois conception of the public sphere.
9. Mary P. Ryan, *Women in Public: Between Banners and Ballots, 1825–1880* (Baltimore: John Hopkins University Press, 1990) and "Gender and Public Access: Women's Politics in Nineteenth Century America," in *Habermas and the Public Sphere*, ed. Craig Calhoun.

10. Geoff Eley, "Nations, Publics, and Political Cultures."

11. Geoff Eley, "Nations, Publics, and Political Cultures."

12. I am leaving aside whether one should speak here not of consent *tout court* but rather of "something approaching consent," "something appearing as consent," or "something constructed as consent" in order to leave open the possibility of degrees of consent.

13. The public sphere produces consent via circulation of discourses that construct the common sense of the day and represent the existing order as natural and/or just, but not simply as a ruse that is imposed. Rather, the public sphere in its mature form includes sufficient participation and sufficient representation of multiple interests and perspectives to permit most people most of the time to recognize themselves in its discourses. People who are ultimately disadvantaged by the social construction of consent nonetheless manage to find in the discourses of the public sphere representations of their interests, aspirations, life problems, and anxieties that are close enough to resonate with their own lived self-representations, identities, and feelings. Their consent to hegemonic rule is secured when their culturally constructed perspectives are taken up and articulated with other culturally constructed perspectives in hegemonic sociopolitical projects.

14. Here I want to distance myself from a certain overly facile line of argument that is sometimes made against Habermas. This is the line that ideological functions of public spheres in class societies simply undermine the normative notion as an ideal. This I take to be a non sequitur, since it is always possible to reply that under other conditions, say, the abolition of classes, genders, and other pervasive axes of inequality, the public sphere would no longer have this function but would instead be an institutionalization of democratic interaction. Moreover, as Habermas has often pointed out, even in existing class societies, the significance of the public sphere is not entirely exhausted by its class function. On the contrary, the idea of the public sphere also functions here and now as a norm of democratic interaction that we use to criticize the limitations of actually existing public spheres. The point here is that even the revisionist story and the Gramscian theory that cause us to doubt the value of the public sphere are themselves only possible because of it. It is the idea of the public sphere that provides the conceptual condition of possibility for the revisionist critique of its imperfect realization.

15. Jane Mansbridge, "Feminism and Democracy," *The American Prospect*, no. 1 (Spring 1990): 127.

16. In *Distinction* Pierre Bourdieu has theorized these processes in an illuminating way in terms of the concept of "class habitus."

17. As Habermas notes, this tendency is exacerbated with the concentration of media ownership in late-capitalist societies. For the steep increase in concentration in the United States in the late twentieth century, see Ben H. Bagdikian, *The Media Monopoly* (Boston: Beacon Press, 1983) and "Lords of the Global Village," *The Nation* (June 12, 1989). This situation contrasts in some respects with countries with television owned and operated by the state. But even there it is doubtful that subordinated groups have equal access. Moreover, political and economic pressures have recently encouraged privatization of media in several of these countries. In part, this reflects the problems of state networks having to compete for "market share" with private channels airing U.S.-produced mass entertainment.

18. This is the spirit behind, for example, proposals for reforms of election-campaign financing aimed at preventing the intrusion of economic dominance into the public sphere. Needless to say, within a context of massive societal inequality, it is far better to have such reforms than not to have them. However, in light of the sorts of informal effects of dominance and inequality discussed above, one ought not to expect too much from them. The most thoughtful recent defense of the liberal view comes from someone who in other respects is not a liberal. See Michael Walzer, *Spheres of Justice: A Defense of Pluralism and Equality* (New York: Basic Books, 1983). Another very interesting approach has been suggested by Joshua Cohen. In response to an earlier draft of this essay, he argued that policies designed to facilitate the formation of social movements, secondary associations, and political parties would better foster participatory parity than would policies designed to achieve social equality, since the latter would require redistributive efforts that carry "deadweight losses." I certainly support the sort of policies that Cohen recommends, as well as his more general aim of an "associative democracy." The sections of this paper on multiple publics and strong publics make a case for related arrangements. However, I am not persuaded by the claim that these policies can achieve participatory parity under conditions of social inequality. That claim seems to me to be another variant of the liberal view of the autonomy of the political, which Cohen otherwise claims to reject. See Joshua Cohen, "Comments on Nancy Fraser's 'Rethinking the Public Sphere'" (unpublished manuscript presented at the meetings of the American Philosophical Association, Central Division, New Orleans, April 1990).

19. My argument draws on Karl Marx's still unsurpassed critique of liberalism in section 1 of "On the Jewish Question." Hence the allusion to Marx in the title of this essay.

20. My argument in this section is deeply indebted to Joshua Cohen's perceptive comments on an earlier draft of this paper in "Comments on Nancy Fraser's 'Rethinking the Public Sphere.'"

21. I have coined this expression by combining two terms that other theorists have recently effectively used for purposes consonant with my own. I take the term "subaltern" from Gayatri Spivak, "Can the Subaltern Speak?" in *Marxism and the Interpretation of Culture*, ed. Cary Nelson and Larry Grossberg (Chicago: University of Illinois Press, 1988), pp. 271–313. I take the term "counterpublic" from Rita Felski, *Beyond Feminist Aesthetics* (Cambridge: Harvard University Press, 1989).

22. For an analysis of the political import of oppositional feminist discourses about needs, see Nancy Fraser, "Struggle over Needs: Outline of a Socialist-Feminist Critical Theory of Late-Capitalist Political Culture," in Fraser, *Unruly Practices*.

23. Geoff Eley, "Nations, Publics, and Political Cultures." Eley goes on to explain that this is tantamount to "extend[ing] Habermas's idea of the public sphere toward the wider public domain where authority is not only constituted as rational and legitimate, but where its terms are contested, modified, and occasionally overthrown by subaltern groups."

24. It seems to me that public discursive arenas are among the most important and underrecognized sites in which social identities are constructed, deconstructed, and reconstructed. My view stands in contrast to various psychoanalytic accounts of identity formation, which neglect the formative importance of post-Oedipal discursive interaction outside the nuclear family and which therefore cannot explain identity shifts over time. It strikes me as unfortunate that so much of contemporary feminist theory has taken its understanding of social identity from psychoanalytic models, while neglecting to study identity construction in relation to public spheres. The revisionist

historiography of the public sphere discussed earlier can help redress the imbalance by identifying public spheres as loci of identity reconstruction. For an account of the discursive character of social identity and a critique of Lacanian psychoanalytic approaches to identity, see Nancy Fraser, "The Uses and Abuses of French Discourse Theories for Feminist Politics," *boundary 2*, 17, no. 2 (Summer 1990): 82–101.

25. For another statement of this position, see Nancy Fraser, "Toward a Discourse Ethic of Solidarity," *Praxis International* 5, no. 4 (January 1986): 425–429. See also Iris Young, "Impartiality and the Civic Public: Some Implications of Feminist Critiques of Moral and Political Theory" in *Feminism as Critique*, ed. Seyla Benhabib and Drucilla Cornell (Minneapolis: University of Minnesota Press, 1987), pp. 56–76.
26. For an analysis of the rhetorical specificity of one historical public sphere, see Michael Warner, *The Letters of the Republic: Publication and the Public Sphere in Eighteenth Century America* (Cambridge: Harvard University Press, 1990).
27. One could say that at the deepest level, everyone is *mestizo*. The best metaphor here may be Wittgenstein's idea of family resemblances, or networks of crisscrossing, overlapping differences and similarities, no single thread of which runs continuously throughout the whole. For an account that stresses the complexity of cultural identities and the salience of discourse in their construction, see Nancy Fraser, "The Uses and Abuses of French Discourse Theories for Feminist Politics." For accounts that draw on concepts of *métissage*, see Gloria Anzaldúa, *Borderlands: La Frontera* (1987) and Françoise Lionnet, *Autobiographical Voices: Race, Gender, Self-Portraiture* (Ithaca: Cornell University Press, 1989).
28. In these respects, the concept of a public differs from that of a community. "Community" suggests a bounded and fairly homogeneous group, and it often connotes consensus. "Public," in contrast, emphasizes discursive interaction that is in principle unbounded and open-ended, and this in turn implies a plurality of perspectives. Thus, the idea of a public can accommodate internal differences, antagonisms, and debates better than that of a community. For an account of the connection between publicity and plurality, see Hannah Arendt, *The Human Condition* (Chicago: University of Chicago Press, 1958). For a critique of the concept of community, see Iris Young, "The Ideal of Community and the Politics of Difference," in *Feminism and Postmodernism*, ed. Linda J. Nicholson (New York: Routledge, Chapman and Hall, 1989), pp. 300–323.
29. In this essay I do not directly discuss sense (1), state-related. However, in the next section of this essay I consider some issues that touch on that sense.
30. This is the equivalent in democratic theory of a point that Paul Feyerabend has argued in the philosophy of science. See Feyerabend, *Against Method* (New York: Verso, 1988).
31. In contrast, the liberal-individualist model stresses the view of politics as the aggregation of self-interested, individual preferences. Deliberation in the strict sense drops out altogether. Instead, political discourse consists in registering individual preferences and in bargaining, looking for formulas that satisfy as many private interests as possible. It is assumed that there is no such thing as the common good over and above the sum of all the various individual goods, and so private interests are the legitimate stuff of political discourse.
32. Jane Mansbridge, "Feminism and Democracy," p. 131.

33. This point, incidentally, is in the spirit of a strand of Habermas's recent normative thought, which stresses the procedural, as opposed to the substantive, definition of a democratic public sphere; here the public sphere is defined as an arena for a certain type of discursive interaction, not as an arena for dealing with certain types of topics and problems. There are no restrictions, therefore, on what may become a topic of deliberation. See Seyla Benhabib's account of this radical proceduralist strand of Habermas's thought and her defense of it as the strand that renders his view of the public sphere superior to alternative views: Benhabib, "Models of Public Space: Hannah Arendt, the Liberal Tradition, and Jürgen Habermas," in *Habermas and the Public Sphere*, ed. Craig Calhoun.

34. Usually, but not always. As Josh Cohen has argued, exceptions are the uses of privacy in *Roe v. Wade*, the U.S. Supreme Court decision legalizing abortion, and in Justice Blackmun's dissent in *Bowers*, the decision upholding state antisodomy laws. These examples show that the privacy rhetoric is multivalent rather than univocally and necessarily harmful. On the other hand, there is no question but that the weightier tradition of privacy argument has buttressed inequality by restricting debate. Moreover, many feminists have argued that even the "good" privacy uses have some serious negative consequences in the current context and that gender domination is better challenged in this context in other terms. For a defense of privacy talk, see Joshua Cohen, "Comments on Nancy Fraser's 'Rethinking the Public Sphere.'"

35. There are many possibilities here, including such mixed forms as market socialism.

36. I use the expression "quasi-direct democracy" to signal the possibility of hybrid forms of self-management involving the democratic designation of representatives, managers, or planners held to strict standards of accountability through, for example, recall.

37. By "hybrid possibilities" I mean arrangements involving very strict accountability of representative decision-making bodies to their external publics through veto and recall rights. Such hybrid forms might be desirable in some circumstances, though certainly not all.